

obligations, and resulting exposure to SCE. It asks for leave to amend should the Court require greater specificity.

In a breach of contract cause of action, the plaintiff must attach the contract, plead its terms in verbatim, or plead its legal effect. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2022) 29 Cal.4th 189, 198-1999; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489.) A complaint is demurrable if, “[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10, subd. (g).)

Here, the operative pleading alleges the existence of a master services agreement and sub-agreement between SCE and QUES, to which WARC is not a party but is a third-party beneficiary. (XComplt., Preliminary Allegations ¶¶8, 11; Fourth COA ¶¶10-12.) This is sufficient for purposes of demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN vs EQUITY LIFESTYLE PROPERTIES, INC.	MOTION TO DETERMINE DISCOVERY DEADLINES, TIMELINESS OF DISCOVERY RESPONSES, AND LEGAL CONSEQUENCES

Tentative Ruling:

Plaintiff's Motion to Determine Discovery Deadlines is denied.

The Plaintiff's Motion for an Order Determining Discovery Deadlines, Timeliness of Defendants' Discovery Responses, and Legal Consequences is fundamentally flawed and lacks any basis in the California Civil Discovery Act. Plaintiff presents the question of whether the April 20, 2026, attempted Anti-SLAPP filing triggered a stay under Code of Civil Procedure section 425.16(g) and whether the June 22, 2026, responses were timely. In the Court's June 10, 2026 ruling, it explicitly identified the resubmitted motion filed on May 21, 2026, as the operative filing; and ignores the clear mathematical extension of deadlines provided by Code of Civil Procedure section 12a.

The strategic integrity of California litigation relies upon strict adherence to the California Civil Discovery Act (Code of Civil Procedure sections 2016.010–2036.050). It is imperative that the Court declines to issue advisory opinions on discovery matters that the Legislature intended to be "self-executing." By refusing to provide standalone determinations on timing, the Court prevents the discovery process from regressing into the "sporting theory of litigation" condemned in *Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355.

Plaintiff's current motion essentially seeks a re-litigation of these settled procedural facts under the guise of discovery management. While Plaintiff appears "In Pro Per," she is

obligated to follow established procedural law; her self-represented status does not grant the Court the power to bypass the mandatory statutory framework of the Discovery Act.

Discovery in California is strictly a "creature of statute" as defined in Code of Civil Procedure section 2019.010. This statutory exclusivity is the bedrock of judicial efficiency, ensuring that litigants follow a uniform roadmap. Deviations—such as the "freestanding motion" requested here—threaten to undermine the predictability of litigation. As established in *Holm v. Superior Court* (1986) 187 Cal.App.3d 1241 and reaffirmed in *Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, the Court possesses no power to expand the authorized methods of discovery. When a party disputes the timeliness of responses or the preservation of objections, they must utilize the "device-specific" motions provided by the Act. If Plaintiff believes that the responses were untimely and there is a legal consequence to the untimely responses, Plaintiff needs to pursue specific remedies set forth in the discovery statutes pertaining to the particular type of discovery response.

Plaintiff's generalized request for an "Order Determining Discovery Deadlines" is not an authorized motion. The Court cannot create a non-statutory mechanism to resolve timing disputes in a vacuum.

The Court has an affirmative duty to discourage the misuse of the discovery process and the filing of frivolous motions. Under Code of Civil Procedure section 2023.010 and section 2023.030, the Court may impose sanctions for the misuse of process. Furthermore, Code of Civil Procedure section 128.5 (bad faith/frivolous actions) and section 128.7 (frivolous pleadings) protect judicial resources from meritless filings.

While self-represented litigants cannot recover attorney fees as a discovery sanction, they are subject to sanctions for "reasonable expenses incurred" by the opposing party, such as research and filing costs (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015). Tactics constituting a misuse of the discovery process include persisting in an attempt to obtain discovery through unauthorized methods, filing discovery motions without a proper statutory basis, or requesting "terminating sanctions" or a "waiver of all objections" as a first-measure remedy for a timing dispute.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601194	VILLANUEVA vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT
CVRI2601194	VILLANUEVA vs COUNTY OF RIVERSIDE	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Defendant County of Riverside's Demurrer is the overruled.